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Ireland

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.[1] It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. Human rights mechanisms recommended that Ireland ratify the Optional Protocol to the International Covenant on Economic, Social and Cultural Rights, the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, the Optional Protocol to the Convention on the Rights of the Child on the sale of children, child prostitution and child pornography, the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families and the International Convention for the Protection of All Persons from Enforced Disappearance.[2] The Committee on the Elimination of Discrimination against Women recommended that Ireland ratify the Workers with Family Responsibilities Convention, 1981 (No. 156), and the Maternity Protection Convention, 2000 (No. 183), of the International Labour Organization.[3] The United Nations Educational, Scientific and Cultural Organization (UNESCO) recommended that Ireland ratify the Convention against Discrimination in Education.[4]

3. The Human Rights Committee recalled its previous recommendation that Ireland should give further consideration to taking concrete steps to withdraw its reservations to articles 10 (2) and 20 (1) of the International Covenant on Civil and Political Rights.[5] The Committee on the Elimination of Discrimination against Women made similar recommendations regarding some reservations.[6]

4. Ireland contributed financially to the Office of the United Nations High Commissioner for Human Rights annually, from 2021 to 2024.[7]

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III. National human rights framework

1. Constitutional and legislative framework

5. The Committee on the Elimination of Discrimination against Women noted with regret that the 2024 constitutional referendum proposing to delete article 41.2 of the Constitution and replace it with gender-neutral language about care had been defeated,[8] and it recommended that Ireland carry out an independent evaluation of the referendum, as well as undertake inclusive public consultations to find alternative wording with a view to holding another constitutional referendum on amending article 41.2 to remove stereotypical language on the role of women in the home.[9] The Human Rights Committee similarly recommended that Ireland modify the language used in articles 40 and 41 of the Constitution.[10]

6. The Human Rights Committee noted that, despite its previous recommendations, Ireland had not taken steps to incorporate the Covenant into the domestic legal order and had no intention to do so, reiterating that a number of Covenant rights went beyond the scope of the Convention for the Protection of Human Rights and Fundamental Freedoms (European Convention on Human Rights).[11] In its responses to the Human Rights Committee and the Committee on Economic, Social and Cultural Rights, Ireland maintained its position that direct incorporation of the Covenants into domestic law was not required under its dualist legal system, asserting that constitutional provisions and domestic law gave sufficient effect to treaty obligations.[12]

7. The Committee on Economic, Social and Cultural Rights remained concerned about the continued absence of comprehensive anti-discrimination legislation[13] and recommended that Ireland adopt such legislation, including explicit references to all prohibited grounds of discrimination, definitions of direct, indirect, intersectional and multiple discrimination and effective judicial and administrative mechanisms.[14] The Committee on the Elimination of Discrimination against Women noted with concern that the equality (miscellaneous provisions) bill of 2024 had not been enacted[15] and recommended that Ireland expedite its drafting and enactment.[16] The Special Rapporteur on extreme poverty and human rights welcomed the steps taken by the Government of Ireland to include socioeconomic disadvantage as a new equality ground in the equality (miscellaneous provisions) bill of 2024, noting that such inclusion could contribute to strengthening legal recognition of intersectional discrimination and promoting a more inclusive and equitable society, and encouraged Ireland to proceed with that inclusion as soon as possible.[17]

8. UNESCO recommended that Ireland consider enshrining the right to education in the Constitution, guarantee in legislation at least 12 years of free primary and secondary education and introduce legislation to make pre-primary education free and compulsory for at least one year.[18]

2. Institutional infrastructure and policy measures

9. The Committee on the Elimination of Discrimination against Women welcomed the 12 per cent increase in the 2025 budget of the Irish Human Rights and Equality Commission but remained concerned that the Commission was not adequately resourced to effectively discharge its expanded mandate.[19] It recommended that Ireland allocate sufficient human, technical and multi-year financial resources to enable the Commission to discharge its mandate in compliance with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles).[20] The Committee on Economic, Social and Cultural Rights reiterated its previous recommendation that Ireland take all measures necessary, including reviewing the Irish Human Rights and Equality Commission Act of 2014, to ensure that the Commission covered and applied all rights enshrined in the Covenant.[21]

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

10. The Human Rights Committee was concerned about persistent discrimination suffered by women, persons of African descent, the Traveller and Roma communities, persons with disabilities and LGBTI persons, especially in education, healthcare and employment.[22] It recommended that Ireland guarantee swift and full implementation of updated national strategies and the national action plan against racism, develop a system of ethnic equality monitoring and ensure adequate training for law enforcement officials to prevent racial profiling.[23] The Committee on Economic, Social and Cultural Rights recommended that Ireland take targeted special measures to prevent and combat the persistent discrimination, racism and inequality faced by those groups, particularly in the areas of decent work, social security, healthcare, adequate housing and education.[24]

11. The Human Rights Committee was concerned about increases in hate crime and discriminatory incidents and that proposed legislation might not be in line with international standards.[25] It recommended that Ireland proceed with the timely adoption of the criminal justice (incitement to violence or hatred and hate crime) bill of 2022, improve data collection and take effective measures to prevent and sanction both online and offline hate speech.[26]

12. Ireland informed the Human Rights Committee that the Criminal Justice (Hate Offences) Act of 2024 had been enacted and commenced in full on 31 December 2024, creating aggravated forms of certain existing criminal offences, where motivated by hatred of protected characteristics, with enhanced penalties.[27] Ireland also reported the adoption of the national action plan against racism for 2023 and the appointment of a Special Rapporteur on Racial Equality and Racism in July 2024.[28]

2. Right to life, liberty and security of person and freedom from torture

13. The Human Rights Committee recalled its previous concerns on prison conditions[29] and recommended that Ireland eliminate overcrowding, including through non-custodial measures, ensure separation between remand and convicted prisoners, refrain from imposing solitary confinement, strengthen mental healthcare, improve sanitary conditions, guarantee the investigation of all deaths in detention and improve transparency relating to the conditions of detention of women detainees, including by publishing the Dóchas reports on the treatment and conditions of detention of women detainees.[30]

14. Several special procedure mandate holders voiced alarm about the purchase and use of 20,000 units of “increased strength incapacitant spray”, which was four times stronger than the spray referenced in the existing Garda Síochána irritant spray policy of 2012. They noted that the spray had allegedly been used on 4 October 2025 against peaceful protesters in Dublin and expressed concern that the adoption of this equipment followed a pattern of opacity and lack of public debate. They emphasized that any use of force by security forces must be in compliance with fundamental principles and applicable international standards.[31]

3. Administration of justice, including impunity, and the rule of law

15. The United Nations High Commissioner for Human Rights welcomed the joint framework between the Governments of Ireland and the United Kingdom of Great Britain and Northern Ireland as an important and positive step towards addressing key human rights impacts of the Troubles.[32] Similarly, several special procedure mandate holders welcomed the joint framework as a significant improvement and underscored the importance of implementing the reforms promptly and in compliance with international standards and those of the European Convention on Human Rights.[33]

16. The Human Rights Committee welcomed the efforts of Ireland to address past human rights violations in the Magdalene laundries, children’s institutions and mother and baby homes, but remained concerned about the climate of impunity, the limited number of

investigations and lack of prosecutions and the failure to provide full and effective remedies, including the requirement for victims to sign a waiver against further legal recourse to receive compensation.[34] Several special procedures expressed similar concerns.[35] The Human Rights Committee recommended that Ireland ensure the full recognition of the violation of human rights of all victims in those institutions and establish a transitional justice mechanism to fight impunity and guarantee the right to truth for all victims.[36]

17. The Committee on the Elimination of Discrimination against Women noted the continuing lack of recognition that women and girls of the Magdalene laundries had experienced gender-based discrimination[37] and recommended removing arbitrary barriers to redress for survivors and fully implementing the 2014 judgment of the European Court of Human Rights in *O'Keeffe v. Ireland*.[38] Ireland informed the Human Rights Committee that significant progress had been made, underscoring that 13 of 22 actions in the Government's action plan for survivors and former residents of mother and baby and county home institutions had been completed, inter alia, the appointment of a Special Advocate for Survivors, progress on access to records and work to establish the National Centre for Research and Remembrance.[39]

18. Several special procedures recommended that Ireland ensure a clear and transparent procedure for unconditional access to information and archives, which could enable victims and relatives to establish their identity and the fate of the disappeared relatives.[40]

19. The Human Rights Committee reiterated its concern at the failure of Ireland to clearly recognize the nature of the deliberate and systematic practice of symphysiotomy and provide all survivors with redress.[41] It recommended that Ireland initiate an independent criminal investigation into symphysiotomy cases and ensure that all women affected received adequate redress.[42] Ireland informed the Committee that ex gratia payments totalling €29.8 million had been disbursed to 399 women.[43]

20. The Human Rights Committee was concerned about the low number of recommendations contained in the *Review of Structures and Strategies to Prevent, Investigate and Penalise Economic Crime and Corruption* that had been fully implemented and the possible lack of independence of the Garda Anti-Corruption Unit.[44] It recommended that Ireland ensure the full, effective and prompt implementation of the recommendations in the *Review*, strengthen the independence of law enforcement agencies and prosecutors dealing with corruption and implement the measures necessary to protect whistle-blowers.[45]

4. Fundamental freedoms and the right to participate in public and political life

21. The Committee on Economic, Social and Cultural Rights, while noting a very dynamic and vibrant civil society, was concerned about reports indicating that civil society faced constraints in engaging in political advocacy in the context of the Charities Act of 2009[46] and recommended that Ireland take all measures necessary, including within the framework of the charities (amendment) bill of 2023, to enable civil society to participate in political and advocacy work on economic, social and cultural rights.[47]

22. The Economic Commission for Europe reported that the Meeting of the Parties to the Convention on Access to Information, Public Participation in Decision-Making and Access to Justice in Environmental Matters had recommended that Ireland enact legislation to ensure that existing permits for environmentally significant activities, such as planning permissions and industrial licences, could not be extended beyond a minimal duration without affording the public the same participation rights as applied when a permit was first granted, including the right to be notified, to comment and to have those comments taken into account.[48]

23. The Human Rights Committee was concerned about the slow progress in adopting the electoral reform bill and the Electoral Commission's missing role in addressing hate speech in the electoral process.[49] It recommended that Ireland complete the adoption of the bill, ensure that the Commission had a role in monitoring discriminatory rhetoric and hate speech and redouble efforts to guarantee the political participation of marginalized groups.[50]

24. The Committee on the Elimination of Discrimination against Women remained concerned that, despite electoral quotas, women held only 25 per cent of seats in the Lower House and that only 3 of 15 Cabinet ministers were women, as well as about reports of online

abuse targeting female politicians.[51] It recommended that Ireland amend the Electoral (Amendment) (Political Funding) Act of 2012 to require parity and extend its application to the Upper House and to the nomination of Cabinet ministers and local governance bodies and strengthen targeted measures, including temporary special measures such as parity nested gender quotas, to increase the representation of women in political and public life, [52] in all areas where women were disadvantaged or underrepresented.[53]

25. The Human Rights Committee was concerned that the Education (Admissions to Schools) Act of 2018 applied only to primary education, about reports that more than half of secondary schools were under religious patronage and about the slow progress in amending constitutional provisions requiring religious oaths for senior public offices.[54] It recommended that Ireland amend the relevant articles of the Constitution, provide secular education through non-denominational schools and amend further section 37 (1) of the Employment Equality Act to bar discrimination in employment in education and health.[55]

5. Right to privacy

26. The Human Rights Committee remained concerned by the lack of sufficient safeguards against arbitrary interference with the right to privacy and by the proposed extension of police surveillance powers through the Garda Síochána (recording devices) bill of 2022.[56] It recommended that Ireland ensure that all surveillance activities were in compliance with the principles of transparency, proportionality and necessity and that processing and collection of personal data were subject to effective independent oversight and access to effective remedies.[57] Several special procedure mandate holders expressed similar concerns and urged Ireland to reconsider the proposal and refrain from authorizing the use of facial recognition technology until the European Union legislative process on artificial intelligence was completed.[58]

27. The Committee on the Elimination of Discrimination against Women recommended that Ireland consolidate sexual offence laws based on consent and prohibit access to survivors' counselling notes.[59]

6. Right to marriage and family life

28. The Committee on the Elimination of Discrimination against Women recommended that Ireland address the disproportionately high poverty rates among women-headed single parent households, publish comprehensive evaluations of the impact of mandatory mediation on women's rights and research on the economic outcomes of divorce to inform evidence-based family justice reforms and undertake systematic evaluation and adopt measures to address discrimination against women with disabilities in child custody decisions.[60]

7. Prohibition of all forms of slavery, including trafficking in persons

29. The Committee on the Elimination of Discrimination against Women welcomed efforts to combat trafficking in persons, but noted with concern the persistently low prosecution and conviction rates, the insufficient trafficking-specific expertise among judges and lawyers and the significant gaps in victim identification, including the exclusion of certain groups from the formal identification scheme.[61] The Committee recommended that Ireland enforce existing legislation on trafficking in persons effectively by ensuring that cases were thoroughly investigated and perpetrators prosecuted and adequately punished, provide mandatory training for judges and lawyers and strengthen mechanisms for the early identification of all victims.[62]

30. The Human Rights Committee recommended that Ireland review barriers in the criminal justice system and redouble its efforts to identify victims of trafficking and to adopt the measures necessary to ensure that assistance was not conditional upon cooperation with the authorities and adopt a child-specific identification procedure.[63] The Committee on the Rights of the Child recommended that Ireland establish a national referral mechanism for the identification and referral of children who were victims of trafficking and ensure their access to psychological support, legal assistance and other support services, in line with the recommendations of the National Rapporteur on the Trafficking of Human Beings.[64]

31. Several special procedure mandate holders urged Ireland to set up, as a matter of priority, specialized accommodation facilities for victims of trafficking in persons and to ensure that accommodation was gender-sensitive, appropriate and safe and that victims were provided with specialized services.[65]

8. Right to work and to just and favourable conditions of work

32. The Committee on Economic, Social and Cultural Rights recommended that Ireland review its employment policies to address the root causes of unemployment, with time-bound goals focusing on young people, older persons, persons of African descent, migrants, Travellers and Roma and persons with disabilities, notably women belonging to one or more of those groups.[66] It also recommended measures to ensure that the minimum wage applied to all workers, all sectors and all forms of employment, including by repealing section 34 (6), which provided for age-related remuneration, and 35 (1), on different rates of remuneration for persons with disabilities, of the Employment Equality Act, and ensure that all migrant workers, including domestic workers and live-in carers, enjoyed equal rights with other workers.[67]

33. The Committee on the Elimination of Discrimination against Women noted the persistent gender pay gap of 9.6 per cent and a gender pension gap of 36 per cent[68] and recommended the effective enforcement of the principle of equal pay for work of equal value.[69]

9. Right to social security

34. The Committee on Economic, Social and Cultural Rights was concerned about the inadequacy of social security benefits and the habitual residence condition, which effectively denied access to certain disadvantaged groups and had a significant discriminatory effect on Traveller and Roma communities, victims of domestic violence, people experiencing homelessness and migrants.[70] It recommended that Ireland establish a social protection floor guaranteeing universal coverage, remove discriminatory conditions attached to social security benefits and ensure equitable parental leave benefits.[71] The Committee on the Rights of the Child urged Ireland to assess the impact of the habitual residence condition on children belonging to ethnic minority groups and amend social welfare payments accordingly.[72]

35. In its response to the Committee on Economic, Social and Cultural Rights, Ireland noted that habitual residence in Ireland was a requirement for receipt of certain social assistance payments and child benefits, explaining that it applied to all applicants equally and that all individual circumstances were considered.[73]

10. Right to an adequate standard of living

36. The Committee on Economic, Social and Cultural Rights was concerned about the persistent gap between housing supply and demand, the persistence of homelessness among the most marginalized and the lack of culturally appropriate housing for Travellers and Roma.[74] It recommended that Ireland ensure adequate access to culturally appropriate accommodation for Traveller and Roma communities, addressing the housing deficit and ensuring that evictions, when unavoidable and taken as measures of last resort, were carried out in accordance with due process of law.[75] It also recommended the adoption of a national action plan to eradicate poverty and ensuring targeted support for those disproportionately affected, in particular children, single-parent families, older persons, persons with disabilities, migrants, Travellers and Roma.[76]

37. In response to the Committee on Economic, Social and Cultural Rights, Ireland pointed to the Housing for All plan (2021–2030), which was aimed at increasing housing supply to an average of 33,000 per year by 2030 and delivering over 300,000 new homes, including 90,000 social homes.[77]

11. Right to health

38. The Committee on Economic, Social and Cultural Rights was concerned about large disparities between socioeconomic groups in access to healthcare services, restrictions faced by persons without a registered residence in access to basic healthcare[78] and problems with

the availability, accessibility and quality of mental healthcare services.[79] It recommended that Ireland expand the scope and coverage and improve the quality of healthcare services provided under Sláintecare, ensure access to primary healthcare for all persons without discrimination, ensure the effective implementation of the National Traveller Health Action Plan[80] and ensure that mental healthcare was available, accessible and of quality.[81]

39. The Committee on the Elimination of Discrimination against Women noted the failure to implement the recommendations of the 2023 independent review of the Health (Regulation of Termination of Pregnancy) Act of 2018, the lack of available abortion services and data and the stigma and conscientious objection among medical personnel.[82] It recommended that Ireland urgently implement those recommendations, combat stigma and conscientious objection among medical personnel and consider the possibility of fully decriminalizing abortion and abolishing the mandatory three-day waiting period.[83] Ireland informed the Committee on the Elimination of Discrimination against Women that all maternity hospitals and 462 community providers were providing termination services, indicating that any legislative change to the three-day waiting period or decriminalization required careful consideration.[84]

40. The Committee on the Elimination of Discrimination against Women recommended that Ireland integrate support services for female genital mutilation survivors into mainstream health services and establish a monitoring mechanism to prevent, detect and punish forced sterilization, coercive abortion and non-consensual infertility treatment, with particular attention given to women with disabilities and Roma women.[85]

12. Right to education

41. The Committee on the Rights of the Child was concerned about persistent barriers to access to quality education for children in disadvantaged situations, the establishment of special classes for children with disabilities and racist stereotyping of migrant and ethnic minority communities in curricula.[86] It recommended that Ireland strengthen measures ensuring equal access for Roma and Traveller children, asylum-seeking, refugee and migrant children, and children with disabilities to quality education.[87]

42. The Committee on the Elimination of Discrimination against Women recommended that Ireland integrate compulsory and age-appropriate education on sexual and reproductive health and rights into school curricula at all levels, including education on responsible sexual behaviour, modern contraception and sexual consent, and ensure that sex education was scientifically objective.[88]

43. UNESCO recommended that Ireland increase efforts to finance education by allocating at least 4 to 6 per cent of gross domestic product to education.[89]

13. Cultural rights

44. The Committee on Economic, Social and Cultural Rights welcomed the inclusion of the Cant/Gammon language in the inventory of the cultural heritage of Ireland, but it remained concerned about the lack of a comprehensive legal framework safeguarding Travellers' rights, particularly their cultural and linguistic rights.[90] It reiterated its previous recommendation that Ireland include Travellers as an ethnic minority in anti-discrimination legislation and ensure the promotion, preservation, expression and dissemination of their cultural identity, language and historical legacy.[91]

14. Development, the environment, and business and human rights

45. The Committee on Economic, Social and Cultural Rights was concerned that current emission-reduction policies might not be sufficient to meet the obligations of Ireland under the Paris Agreement[92] and recommended that Ireland take all measures necessary to meet its nationally determined contributions, particularly in the agricultural and land-use change and forestry sectors.[93] Ireland noted its legally binding target of a 51 per cent reduction in greenhouse gas emissions by 2030 under the Climate Action and Low Carbon Development (Amendment) Act of 2021.[94]

46. The Committee on Economic, Social and Cultural Rights recommended that Ireland adopt a regulatory framework requiring business enterprises operating or domiciled in the jurisdiction of Ireland to identify, prevent, mitigate and address abuses of economic, social and cultural rights in their domestic and overseas operations.[95] Ireland informed the Committee that over 91 per cent of commitments under the national plan on business and human rights for the period 2017–2020 had been achieved and that work on a second plan was ongoing, including a review of whether there was a need for greater emphasis on mandatory human rights due diligence.[96]

47. The Independent Expert on the effects of foreign debt and other related international financial obligations of States on the full enjoyment of all human rights, particularly economic, social and cultural rights, urged Ireland to conduct a new, independent and comprehensive spillover analysis of the impact of its tax policies on developing countries and to support a United Nations-based process for international tax reform.[97]

B. Rights of specific persons or groups

1. Women

48. The Committee on the Elimination of Discrimination against Women was deeply concerned about persistent gender-based violence, noting that women accounted for 88 per cent of victims of intimate partner violence and 78 per cent of victims of domestic violence in 2022, and the absence of legislation criminalizing femicide, familicide and domestic homicide.[98] It recommended that Ireland expedite such legislation, raise awareness among marginalized groups and ensure access to specialized legal aid, support services and protection orders, with a particular focus on Traveller, Roma and migrant women, LGBTI women and women with disabilities.[99]

49. The Committee on the Elimination of Discrimination against Women noted with concern that Roma and Traveller women and girls continued to face limited access to education, employment, health services and housing and that Traveller women accounted for 22 per cent of female prisoners while representing only 0.7 per cent of the national population.[100] It recommended that Ireland take concrete measures to improve access to services for Traveller women and girls, address the root causes of their overrepresentation in places of deprivation of liberty, and expand non-custodial alternatives.[101]

50. The Committee on the Elimination of Discrimination against Women expressed concern about the multiple and intersecting forms of discrimination faced by women with disabilities, including discriminatory provisions limiting their right to marry, found a family and have custody of their children[102] and about reported cases of the forced sterilization, coercive abortion and non-consensual infertility treatment of women with disabilities and Roma women.[103] It recommended that Ireland ensure effective access to justice and legal aid through disability-sensitive services and establish comprehensive reparations for those who were survivors of institutional abuse and harmful practices, such as forced sterilization and coercive abortion,[104] and establish a monitoring mechanism to prevent, detect and punish forced sterilization, coercive abortion and non-consensual infertility, with particular attention given to women with disabilities and Roma women.[105]

2. Children

51. The Committee on the Rights of the Child was seriously concerned about the low age of criminal responsibility, the overrepresentation of minority children in detention, the limited use of non-custodial measures and the racial profiling of children by law enforcement.[106] It urged Ireland to raise the minimum age of criminal responsibility to at least 14 years, ensure that children below the age of 18 were not prosecuted as adult offenders, promote non-judicial measures for children accused of criminal offences and develop measures to prevent racial profiling.[107]

52. The Committee on the Rights of the Child was concerned about the high prevalence of violence against children, including sexual exploitation, online violence and bullying, and the low rates of reporting, prosecution and conviction in cases of violence against children.[108]

It recommended that Ireland ensure the prompt and effective sociolegal investigation of, and intervention in, all cases of violence against children, including neglect and sexual abuse, in and outside the home, and in the digital environment, and that perpetrators were brought to justice.[109]

53. The Committee on the Rights of the Child was seriously concerned about insufficient and inadequate mental health services for children, long waiting lists, the placement of children with mental health issues in adult psychiatric wards and the identification of racism as most detrimental to the mental health of children of ethnic minority groups.[110] It urged Ireland to significantly increase resources for mental health policy implementation, ensure that the Mental Health Act explicitly prohibited placing children in adult psychiatric units and develop a designated mental health support service for children of minority ethnic groups.[111]

3. Persons with disabilities

54. The Human Rights Committee was concerned about significant delays in the commencement and reform of enacted legislation concerning legal capacity and persons with psychosocial disabilities and the ongoing use of seclusion, physical restraint, electroconvulsive therapy and involuntary medication.[112] It recommended that Ireland ensure the prompt reform of legislation, ensure that the non-consensual use of psychiatric medication, electroconvulsive therapy and other restrictive and coercive practices in mental health services was prohibited and offer adequate community-based or alternative social care services for persons with intellectual or psychosocial disabilities.[113]

55. The Committee on the Rights of the Child recommended that Ireland review relevant legislation, including the Equality Acts, the Disability Act and the Education for Persons with Special Educational Needs Act, to bring them in line with a human rights-based approach to disability, and revise the standard operating procedure for assessments of need by the Health Service Executive to include diagnoses, in line with the Disability Act.[114] The Committee on the Elimination of Discrimination against Women recommended that Ireland ensure inclusive accessibility to quality education for girls and women with disabilities, including through affirmative action measures that took into account their specific needs.[115]

4. Minorities

56. The Human Rights Committee welcomed the formal recognition of Travellers as a distinct ethnic group in Irish society, as well as the acknowledgement of Ireland of the systemic racism affecting that community for decades. The same Committee was concerned that the formal recognition had not yet been backed up by a legal act and about multiple forms of discrimination faced by the Traveller and Roma communities, inter alia, in education, housing and employment, and the overrepresentation of Travellers in the penal system.[116] It recommended that Ireland assess the impact of the formal recognition of Travellers and review the national Traveller and Roma inclusion strategy, 2017–2021, and ensure the prompt and full implementation of a successor strategy.[117]

5. Lesbian, gay, bisexual, transgender and intersex persons

57. The Human Rights Committee was concerned about social stigmatization and discrimination against persons based on their sexual orientation or gender identity, reports of the continued practice of conversion therapy and the continued invasive medical interventions on intersex children before children were of an age to allow them to give their full, free and informed consent.[118] It recommended that Ireland consider steps to prohibit conversion therapy and ensure that all acts relating to sex assignment of intersex children performed without their free and informed consent were specifically prohibited, except where absolutely necessary for medical reasons.[119]

6. Migrants, refugees and asylum-seekers

58. The Human Rights Committee remained concerned about significant and increasing delays in processing international protection applications, reception conditions for asylum-seekers, the increased use of emergency accommodation and reports on the disappearance of

unaccompanied minors.[120] It recommended that Ireland reduce processing times, improve reception conditions, inter alia, through vulnerability assessments, and conduct an independent review of child protection measures for unaccompanied minors.[121]

59. The Office of the United Nations High Commissioner for Refugees (UNHCR) reported that despite the 2021 white paper and the comprehensive accommodation strategy of 2024, the reception system of Ireland remained overwhelmingly dependent on contracted and emergency accommodation, with approximately 90 per cent of accommodation settings neither independently monitored nor required to comply with the national standards as of late 2025.[122] It recommended that Ireland expand State-provided accommodation, ensure that all accommodation was in compliance with national standards and was subject to independent oversight and strengthen contingency planning to prevent applicants being left homeless.[123] UNHCR also raised concerns about provisions in the international protection bill of 2026 permitting the detention of children during the screening stage and recommended that Ireland explicitly prohibit the detention of children throughout the international protection process.[124]

60. UNHCR noted that, at the time of submission, the international protection bill of 2026 introduced more restrictive family reunification provisions, including a mandatory two-year waiting period before a sponsor might apply for eligible family members, as well as financial self-sufficiency requirements. It noted that, for several years, applicants had also faced significant delays in the processing of family reunification applications. UNHCR recommended that Ireland remove mandatory waiting periods and income and self-sufficiency requirements and restore broader eligibility criteria for dependent family members.[125]

7. Stateless persons

61. The Committee on the Elimination of Discrimination against Women recommended that Ireland establish a clear, transparent and accessible statelessness determination procedure, in line with international standards, including gender-sensitive safeguards.[126]

62. Similarly, UNHCR recommended that Ireland introduce a formal statelessness determination procedure to ensure that stateless persons could claim their rights under the Convention relating to the Status of Stateless Persons and establish an effective data-collection system in relation to stateless persons.[127] Ireland informed the Committee on the Elimination of Discrimination against Women that it was actively exploring the introduction of a statelessness determination procedure and utilizing a provisional determination procedure on a limited pilot basis.[128]

Notes

1 A/HRC/49/18 and A/HRC/49/18/Add.1 and A/HRC/49/2.
2 E/C.12/IRL/CO/4, para. 56; CRC/C/IRL/CO/5-6, paras. 47 and 48; and CEDAW/C/IRL/CO/8, para. 61.
3 CEDAW/C/IRL/CO/8, para. 38 (g).
4 Submission by the United Nations Educational, Scientific and Cultural Organization (UNESCO) for the universal periodic review of Ireland, para. 33 (i).
5 CCPR/C/IRL/CO/5, para. 8.
6 CEDAW/C/IRL/CO/8, para. 10.
7 OHCHR, *United Nations Human Rights Report 2021*, p. 114; *United Nations Human Rights Report 2022*, p. 424; *United Nations Human Rights Report 2023*, p. 82; and *United Nations Human Rights Report 2024*, p. 388.
8 CEDAW/C/IRL/CO/8, para. 11.
9 Ibid., para. 12.
10 CCPR/C/IRL/CO/5, para. 22 (c).
11 Ibid., paras. 5 and 6. See also E/C.12/IRL/CO/4, paras. 4 and 5; and CRC/C/IRL/CO/5-6, para. 6.
12 CCPR/C/IRL/RQ/5, paras. 1 and 2; and E/C.12/IRL/RQ/4, paras. 1 and 2.
13 E/C.12/IRL/CO/4, para. 22.
14 Ibid., para. 23 (a)
15 CEDAW/C/IRL/CO/8, para. 13.
16 Ibid., para. 14.

[17] See communication IRL 2/2025, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=30623.
[18] Submission by UNESCO, para. 33. (ii)–(iv).
[19] CEDAW/C/IRL/CO/8, para. 21.
[20] Ibid., para. 22.
[21] E/C.12/IRL/CO/4, para. 7.
[22] CCPR/C/IRL/CO/5, para. 15.
[23] Ibid., para. 16. (a)–(c). See also CRC/C/IRL/CO/5-6, paras. 14 and 15 (b).
[24] E/C.12/IRL/CO/4, para. 23 (b). See also CRC/C/IRL/CO/5-6, paras. 14 and 15.
[25] CCPR/C/IRL/CO/5, para. 17.
[26] Ibid., para. 18.
[27] CCPR/C/IRL/FCO/5, paras. 8 and 9.
[28] Ibid., paras. 20 and 22.
[29] CCPR/C/IRL/CO/5, para. 35.
[30] Ibid., para. 36.
[31] See communication IRL 3/2025, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=30665.
[32] See https://www.ohchr.org/en/press-releases/2025/09/uk-ireland-joint-framework-important-step-towards-addressing-human-rights.
[33] See communication IRL 1/2025, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=30445.
[34] CCPR/C/IRL/CO/5, para. 11.
[35] See communication IRL 1/2022, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=27190.
[36] CCPR/C/IRL/CO/5, para. 12 (a). See also CRC/C/IRL/CO/5-6, para. 24 (i); and communication IRL 2/2021, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=26772.
[37] CEDAW/C/IRL/CO/8, para. 17 (e).
[38] Ibid., para. 18 (e).
[39] CCPR/C/IRL/FCO/5, sect. A.
[40] See communication IRL 2/2021, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=26772.
[41] CCPR/C/IRL/CO/5, para. 13
[42] Ibid., para. 14.
[43] CCPR/C/IRL/RQ/5, para. 30.
[44] CCPR/C/IRL/CO/5, para. 9.
[45] Ibid., para. 10.
[46] E/C.12/IRL/CO/4, para. 8.
[47] Ibid., para. 9.
[48] Submission by the Economic Commission for Europe for the universal periodic review of Ireland, paras. 1 and 2 (a).
[49] CCPR/C/IRL/CO/5, para. 47.
[50] Ibid., para. 48.
[51] CEDAW/C/IRL/CO/8, para. 31 (a) and (d).
[52] Ibid., para. 32 (a) and (b). See also CCPR/C/IRL/CO/5, paras. 21 and 22.
[53] CEDAW/C/IRL/CO/8, para. 24.
[54] CCPR/C/IRL/CO/5, para. 41.
[55] Ibid., para. 42.
[56] Ibid., para. 45.
[57] Ibid., para. 46.
[58] See communication IRL 3/2022, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=27594.
[59] CEDAW/C/IRL/CO/8, para. 28 (d).
[60] Ibid., para. 56 (a), (d) and (e).
[61] CEDAW/C/IRL/CO/8, paras. 29 and 30.
[62] Ibid., para. 30.
[63] CCPR/C/IRL/CO/5, para. 32. See also CRC/C/IRL/CO/5-6, para. 43.
[64] CRC/C/IRL/CO/5-6, para. 43 (a).
[65] See communication IRL 1/2023, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=28105.
[66] E/C.12/IRL/CO/4, para. 27 (a)
[67] Ibid., paras. 29 (c) and 31 (d).
[68] CEDAW/C/IRL/CO/8, para. 37.

[69] Ibid., para. 38. See also E/C.12/IRL/CO/4, paras. 24 and 25.
[70] E/C.12/IRL/CO/4, para. 34.
[71] Ibid., paras. 34–37.
[72] CRC/C/IRL/CO/5-6, para. 35 (c).
[73] E/C.12/IRL/RQ/4, para. 82.
[74] E/C.12/IRL/CO/4, para. 40.
[75] Ibid., para. 41. See also CRC/C/IRL/CO/5-6, para. 35 (b).
[76] E/C.12/IRL/CO/4, para. 39. See also CRC/C/IRL/CO/5-6, para. 35 (d).
[77] E/C.12/IRL/RQ/4, paras. 106 and 109.
[78] E/C.12/IRL/CO/4, para. 44.
[79] Ibid., para. 48.
[80] Ibid., para. 45 (b)–(d).
[81] Ibid., para. 49.
[82] CEDAW/C/IRL/CO/8, para. 41.
[83] Ibid., para. 42. See also CCPR/C/IRL/CO/5, paras. 25 and 26; E/C.12/IRL/CO/4, paras. 46 and 47; and Human Rights Committee, *E.B. v. Ireland* (CCPR/C/144/D/3622/2019), para. 10.
[84] See https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=INT%2FCEDAW%2FAIS%2FIRL%2F63571&Lang=en.
[85] CEDAW/C/IRL/CO/8, para. 26 (e) and (f).
[86] CRC/C/IRL/CO/5-6, para. 36. See also submission by UNESCO, paras. 9–12.
[87] CRC/C/IRL/CO/5-6, para. 37. See also E/C.12/IRL/CO/4, para. 53 (c); and submission by UNESCO, para. 33 (viii).
[88] CEDAW/C/IRL/CO/8, para. 36 (c). See also E/C.12/IRL/CO/4, para. 53 (e); and submission by UNESCO, paras. 17 and 33 (ix).
[89] Submission by UNESCO, para. 33 (vi).
[90] E/C.12/IRL/CO/4, para. 54.
[91] Ibid., para. 55.
[92] Ibid., para. 12.
[93] Ibid., para. 13 (a).
[94] E/C.12/IRL/RQ/4, para. 15.
[95] E/C.12/IRL/CO/4, para. 11 (b).
[96] E/C.12/IRL/RQ/4, para. 17.
[97] See communication IRL 1/2024, available at https://spcommreports.ohchr.org/TMResultsBase/DownLoadPublicCommunicationFile?gId=29312.
[98] CEDAW/C/IRL/CO/8, para. 27. See also CCPR/C/IRL/CO/5, para. 23.
[99] CEDAW/C/IRL/CO/8, para. 28. See also CCPR/C/IRL/CO/5, para. 24.
[100] CEDAW/C/IRL/CO/8, para. 47.
[101] Ibid., para. 48.
[102] Ibid., para. 45.
[103] Ibid., para. 25 (f).
[104] Ibid., para. 46 (b) and (d).
[105] Ibid., para. 26 (f).
[106] CRC/C/IRL/CO/5-6, para. 44.
[107] Ibid., para. 45.
[108] Ibid., para. 23.
[109] Ibid., para. 24 (c).
[110] Ibid., para. 31.
[111] Ibid., para. 32.
[112] CCPR/C/IRL/CO/5, para. 33.
[113] Ibid., para. 34.
[114] CRC/C/IRL/CO/5-6, para. 29.
[115] CEDAW/C/IRL/CO/8, para. 36 (e).
[116] CCPR/C/IRL/CO/5, para. 39.
[117] Ibid., para. 40. See also E/C.12/IRL/CO/4, para. 55; and CRC/C/IRL/CO/5-6, para. 42.
[118] CCPR/C/IRL/CO/5, paras. 19.
[119] Ibid., para. 20. See also CEDAW/C/IRL/CO/8, para. 40 (d).
[120] CCPR/C/IRL/CO/5, para. 37.
[121] Ibid., para. 38. See also CRC/C/IRL/CO/5-6, para. 40.
[122] Submission from the Office of the United Nations High Commissioner for Refugees (UNHCR) for the universal periodic review of Ireland, p. 3.
[123] Ibid., p. 5.
[124] Ibid., pp. 6 and 7.

[125] Ibid.
[126] CEDAW/C/IRL/CO/8, para. 34.
[127] Submission from UNHCR, p. 8.
[128] See https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=INT%2FCEDAW%2FAIS%2FIRL%2F63571&Lang=en.